

the demurring party shall not be subject to default during the period of the extension." (Code Civ. Proc. § 430.41(a)(2).)

Code of Civil Procedure section 435.5(a) contains similar provisions governing the parties' obligation to meet and confer prior to filing a motion to strike, with a similar provision for an extension of the filing deadline if in good faith the parties are unable to meet and confer at least five days prior to the filing deadline. (Code Civ. Proc. § 435.5(a)(2).)

In support of the demurrer and motion to strike, General Motors filed the Kay Declaration in which counsel declares that he attempted to meet and confer with counsel for Plaintiff on August 21, 2025, by emailing and calling him on that date, but he was unable to reach Plaintiff's counsel. (Kay Decl. ¶ 2.) General Motors filed its demurrer and motion to strike with the Kay Declaration at approximately 4:39 p.m. the same date, August 21, 2025. The attempt to call counsel the same date the demurrer and motion to strike were due, and then filing the pleading challenges when the party is unable to reach the other party that same day, violates both the letter and spirit of the meet and confer requirement.

The attempt to meet and confer was untimely as performed on the same date the demurrer and motion to strike were due, not at least five days prior to the due date. Despite the untimely meet and confer attempt, the demurring party could have obtained an automatic 30-day extension of time by filing a declaration as provided in Code of Civil Procedure sections 430.41(b) and 435.5(b) so that a meaningful meet and confer could take place before the pleadings were formally challenged.

The continuance of the hearing will allow the parties to conduct the meet and confer they failed to hold or were unable to hold in accordance with Code of Civil Procedure sections 430.41(a) and 435.5(a).

14. 9:00 AM CASE NUMBER: C25-01880
CASE NAME: CTE GROUP VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM PLAINTIFF'S COMPLAINT**
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:
Please see Line 13 above.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S RESPONSES TO FORM**
INTERROGATORIES (SET THREE) AS AGAINST PLAINTIFF
FILED BY: SAN PABLO HEALTHCARE & WELLNESS CETNER LLC
TENTATIVE RULING:
Summary

This tentative ruling applies to lines 15, 16 and 17, which are the three discovery motions filed by Defendant San Pablo Healthcare and Wellness Center LLC dba San Pablo Healthcare and Wellness Center ("Defendant") against Plaintiff Lynetta Westbrook ("Plaintiff") calendared for hearing on